

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Keyne Jean Villert	Team: Squad #14	CCRB Case #: 201403804	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 04/21/2014 12:09 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/21/2015	Precinct: 33
Date/Time CV Reported Mon, 04/21/2014 5:09 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 04/21/2014 5:09 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			033 PCT
2. POM Patrick Tanner	05482	916777	033 PCT
3. POM David Salazar	05371	949604	033 PCT
4. POM Thomas Mosher	02905	949371	033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Saziye Bilger	23905	952466	033 PCT
2. POM Ahmad Burns	07251	938132	033 PCT
3. POM Orlando Fontanez	05388	938494	033 PCT
4. POM Matthew Noftsier	21888	946063	033 PCT
5. SGT Philip Bowles	03487	934524	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Patrick Tanner	Abuse: PO Patrick Tanner entered § 87(2)(b) in Manhattan.	A . Substantiated
B . POM Patrick Tanner	Force: PO Patrick Tanner used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Patrick Tanner	Force: PO Patrick Tanner used physical force against § 87(2)(b)	C . Exonerated
D . POM David Salazar	Force: PO David Salazar used physical force against § 87(2)(b)	D . Exonerated
E . POM David Salazar	Abuse: PO David Salazar threatened to arrest § 87(2)(b)	E . Exonerated
F . An officer § 87(4-b) § 87(2)(g)	Abuse: An officer threatened to arrest § 87(2)(b)	F . Exonerated

Case Summary

- On April 21, 2014, at approximately 12:09 a.m., § 87(2)(b) was inside his apartment, located at § 87(2)(b) in Manhattan, when two officers, identified via investigation as PO Patrick Tanner and PO Saziye Bilger from the 33rd Precinct, knocked on his front door. The officers were responding to a 911 call made in relation to a man with a knife who was smoking marijuana and was walking in and out of the apartment. At some point, § 87(2)(b)'s mother, § 87(2)(b) and a family friend, § 87(2)(b) started witnessing the officers' response at the incident location. PO Tanner allegedly pulled § 87(2)(b) out of the apartment doorway and into the hallway of the building, and then brought him down to the ground (**Allegations A and B**). Afterwards, PO Tanner allegedly pushed § 87(2)(b) down and into the apartment (**Allegation C**) and an officer, identified via investigation as PO David Salazar from the 33rd Precinct, allegedly pushed § 87(2)(b) down in a similar manner and threatened to arrest her (**Allegations D and E**). At some point, an unidentified officer threatened to arrest § 87(2)(b) (**Allegation F**).
- § 87(2)(b) was issued summonses for § 87(2)(b) and for § 87(2)(b) (encl. I6-I7).
- § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation because § 87(2)(b) and § 87(2)(b) both reported having sustained injuries as a result of this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
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§ 87(2)(b)
- As of April 3, 2015, approximately nine months following the expiration of the filing deadline, none of the victims mentioned in this report has filed a notice of claim with the City of New York in regard to this incident (encl. R).

Civilian and Officer CCRB Histories

- There are no prior substantiated CCRB allegations against PO Tanner or PO Salazar; however two force allegations have previously been pled against PO Tanner and were closed as complainant uncooperative. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
- § 87(2)(b) has also filed CCRB case number § 87(2)(b) § 87(2)(g)
§ 87(2)(b) has previously filed three CCRB complaints, § 87(2)(b)
§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) has not previously filed a CCRB complaint (encl. B4-B6).

Civilian Statements

- **Victim:** § 87(2)(b) **(encl. E1-E5)**
 - § 87(2)(b) was inside of his apartment when two officers, identified via investigation as PO Tanner and PO Bilger, knocked on his door. § 87(2)(b) opened the door and the officers informed him that they had received a noise complaint and asked him to lower the volume of his music. § 87(2)(b) was already present at that point.
 - § 87(2)(b) stated that he immediately shut his door and lowered the volume of the music when ordered to do so, at which point the officers knocked on his door once again and eventually asked him for his identification. § 87(2)(b) was not in possession of any government-issued identification at the time of the incident, and he informed the officers of this.
 - § 87(2)(b) was standing inside his apartment when PO Tanner crossed the threshold of the apartment with his arms, pulled § 87(2)(b) out into the hallway, and swept his legs, causing him to fall down onto the ground. § 87(2)(b) landed on his right arm and shoulder. § 87(2)(b) claimed that he remained quiet and he denied having moved his arms or attempting to pull his body back; however, he admitted that PO Tanner mentioned something about cooperating while speaking with § 87(2)(b). Thereafter, multiple additional officers arrived at the scene and handcuffed § 87(2)(b).
 - § 87(2)(b) first stated that § 87(2)(b) arrived at the scene after he had already been arrested and escorted to the lobby of his building; however, he later retracted his statement when he indicated that she was present in the hallway while he was still there. § 87(2)(b) then again retracted his statement by indicating that § 87(2)(b) first arrived when he was inside the lobby.
 - § 87(2)(b) stood approximately three feet away from the officers, screamed at them, repeatedly told them to leave § 87(2)(b) alone, and attempted to approach § 87(2)(b) during the incident. Multiple officers ordered § 87(2)(b) to get out of their way, at which point an unidentified officer pushed her away, causing her to fall down onto the floor. Thereafter, § 87(2)(b) entered § 87(2)(b)'s apartment.
 - § 87(2)(b) added that § 87(2)(b) also attempted to approach § 87(2)(b) during the incident and stood approximately two feet away from him, at which point an unidentified officer stated to her, "Move out of the way or we're going to arrest you." § 87(2)(b) did not allege that § 87(2)(b) was pushed.
 - § 87(2)(b) reported having sustained swelling to his right hand and arm as a result of this incident.
- **Complainant/Victim:** § 87(2)(b) **(encl. D1-D14)**
 - § 87(2)(b) is § 87(2)(b)'s mother.
 - § 87(2)(b) and § 87(2)(b) entered the apartment building and asked PO Tanner and PO Bilger, who were on their way to § 87(2)(b)'s apartment, where they were headed. The officers replied that they were headed to § 87(2)(b)'s apartment to follow-up on a noise complaint. § 87(2)(b) told the

officers that she did not hear music coming from § 87(2)(b)'s apartment and that it had been turned off.

- § 87(2)(b) stated that an officer, identified via investigation as PO Tanner, subsequently pulled § 87(2)(b) out of the apartment, placed him in handcuffs, and placed him against a wall. Thereafter, PO Tanner and unidentified additional officers brought § 87(2)(b) down to the ground and repeatedly kicked and punched him for approximately 30 minutes. § 87(2)(b) denied that § 87(2)(b) ever resisted arrest during the incident.
- During the struggle, § 87(2)(b) asked the officers to stop striking § 87(2)(b) at which point PO Salazar allegedly pushed her twice into the apartment, causing her to fall down onto the floor, and warned her that she could be arrested. § 87(2)(b) reported having sustained pain to her arms and neck as a result of this incident. § 87(2)(b) further alleged that PO Tanner pushed § 87(2)(b) away at some point during the incident.
- § 87(2)(b) alleged that PO Bilger and Sgt. Bowles cursed at both § 87(2)(b) and § 87(2)(b) during the incident; however she did not remember any the exact curse words used by either officer.

• **Victim:** § 87(2)(b) (encl. F1-F6)

- § 87(2)(b) is a neighbor and family friend of § 87(2)(b) and § 87(2)(b).
- § 87(2)(b) stated that when the officer's arrived at § 87(2)(b)'s apartment, the music could not be heard outside of the apartment and that she turned it off when the officers first arrived.
- § 87(2)(b) corroborated that § 87(2)(b) was standing inside of his apartment when as officer, identified via investigation as PO Tanner, grabbed one of his arms and pulled him out of the apartment. PO Tanner handcuffed § 87(2)(b) and then kicked one of his shins, causing him to fall down to the floor.
- § 87(2)(b) corroborated that multiple officers, including PO Tanner, kicked § 87(2)(b) multiple times while he was on the floor. § 87(2)(b) stated that, during the struggle with § 87(2)(b) she asked the officers whether any of them speaks Spanish and that they replied, "No Spanish." § 87(2)(b) added that she and § 87(2)(b) also repeatedly stated, "No," to the officers, at which point PO Tanner pushed both § 87(2)(b) and § 87(2)(b) down to the floor. § 87(2)(b) was pushed with two hands on her chest. § 87(2)(b) lost consciousness for a few seconds after she was pushed. Thereafter, § 87(2)(b) also repeatedly pled with the officers not to hurt § 87(2)(b) and § 87(2)(b) repeatedly stated, "No good."
- § 87(2)(b) denied that she and § 87(2)(b) attempted to approach § 87(2)(b) during the incident.

• **Witness:** § 87(2)(b) (encl. G)

- § 87(2)(b) lived across the hall from § 87(2)(b) at § 87(2)(b). § 87(2)(b) refused to provide a sworn statement to the CCRB. However, she did make an unverified phone statement to the CCRB.
- § 87(2)(b) woke up to noise outside her front door, at which point she started observing the incident through her peephole. § 87(2)(b) did not exit her apartment. § 87(2)(b) stated that § 87(2)(b) made contact with her door as he fell down.

- § 87(2)(b) observed officers pull § 87(2)(b) out of his apartment and then bring him down to the floor.

NYPD Statements

- **Subject Officer: PO PATRICK TANNER (encl. H1-H6)**
 - PO Tanner indicated that he arrived at the scene with his partner, PO Bilger, after multiple units had already arrived. The officers responded to a call about a man with a knife at § 87(2)(b)'s apartment. PO Tanner did not remember whether any additional information was provided or who made the call. PO Tanner denied having interacted with any civilian at the scene. Instead, PO Tanner claimed that that he was backing up the additional officers present, including PO Mosher and each of the additional interviewed officers.
 - PO Tanner stated that PO Mosher was the officer who initially spoke with § 87(2)(b) when the door was opened. PO Tanner also indicated that PO Mosher eventually ordered § 87(2)(b) to exit the apartment, at which point PO Mosher crossed the threshold of the apartment doorway with his arm while motioning for § 87(2)(b) to come out. PO Tanner did not remember whether an officer pulled § 87(2)(b) out into the hallway.
 - PO Tanner stated that § 87(2)(b) was yelling and screaming at the officers, and that the officers ordered him to sit down on the floor due to safety concerns. PO Tanner did not remember how the officers managed to get § 87(2)(b) down. PO Tanner only recalled the force used against § 87(2)(b) extended to other officers pulling his arms behind his back to handcuff him. PO Tanner did not recall § 87(2)(b) physically resisting at any point during the incident.
 - PO Tanner only remembered one female civilian being present at the scene with § 87(2)(b). PO Tanner did not remember that woman interfering with the arrest; however, she screamed at the officers and pled with them not to place § 87(2)(b) under arrest. PO Tanner did not remember observing PO Salazar use any force against that woman. PO Tanner denied that any threat of arrest was issued by any officer at the scene.
- **Subject Officer: PO DAVID SALAZAR (encl. N1-N6)**
 - PO Salazar did not remember this incident; however, he did make a memo book entry indicating that he backed up officers assigned to Sector B at the incident location.
 - PO Salazar did not remember having participated in a struggle or arrest at the time of the incident. PO Salazar was shown pictures of § 87(2)(b) and § 87(2)(b) neither of whom he recognized.
- **Subject Officer: PO THOMAS MOSHER (encl. O1-O5)**
 - PO Mosher did not remember this incident; however, he admitted that, on the date and time of the incident, he was Sgt. Bowles' operator.
 - PO Mosher did not make a memo book entry in regard to this incident. PO Mosher was shown pictures of § 87(2)(b) and § 87(2)(b) neither of whom he recognized. PO Mosher did not remember having participated in a struggle or arrest at the time of the incident.
- **Witness Officer: PO SAZIYE BILGER (encl. I1-I10)**

- PO Bilger and PO Tanner first responded to the call about a man with a knife at § 87(2)(b)'s apartment. PO Bilger did not remember whether the call provided any additional information. While outside the building, PO Bilger heard very loud music coming from its interior. The music was determined to be coming from § 87(2)(b)'s apartment.
- PO Bilger acknowledged that, when he answered the door, § 87(2)(b) was initially standing inside the doorway of his apartment; however, she did not remember how § 87(2)(b) came to be outside of the apartment, in the hallway. PO Bilger denied having smelled the odor of marijuana at the scene.
- PO Bilger believed that § 87(2)(b) was intoxicated because she could smell the odor of alcohol on his breath and his eyes were bloodshot. PO Bilger indicated that marijuana was recovered from § 87(2)(b) after he was handcuffed. § 87(2)(b) and § 87(2)(b) were also present at the scene. § 87(2)(b) and § 87(2)(b) loudly argued with the officers throughout the incident. § 87(2)(b) cursed at the officers and called PO Bilger a “fucking clown.” PO Bilger did not remember whether § 87(2)(b) struggled with the officers; however, she recalled that he flailed his arms during the incident.
- PO Bilger stated that Sgt. Bowles and PO Mosher arrived at the scene after § 87(2)(b) was handcuffed. PO Bilger explained that § 87(2)(b) was handcuffed while standing up. PO Bilger did not remember which officer handcuffed § 87(2)(b). PO Bilger added that Sgt. Bowles later ordered the officers to place § 87(2)(b) down to the floor for safety purposes; however, PO Bilger did not remember whether § 87(2)(b) voluntarily sat down on the floor or was forcefully brought down.
- PO Bilger explained that the officers had a concern for their safety due to their proximity to a staircase, the demeanor of the civilians at the scene, and the efforts by § 87(2)(b) and § 87(2)(b) to get out of the apartment and approach § 87(2)(b) during his apprehension. As such, the officers transported § 87(2)(b) to the stationhouse, where he was released with the summonses. PO Bilger did not remember whether § 87(2)(b) or § 87(2)(b) was pushed.

- **Additional Officer Statements**

- PO Noftsier explained that, upon his arrival with PO Salazar, § 87(2)(b) was struggling with PO Bilger and PO Tanner in the hallway; however, he did not remember what actions PO Bilger and PO Tanner took in response. PO Noftsier did not remember whether any other officers were present at that point. PO Noftsier indicated that he did not observe the initiation of the struggle. PO Noftsier corroborated that § 87(2)(b) flailed his arms and added that he was moving his body around while the officers were attempting to handcuff him. PO Noftsier explained that he assisted with the handcuffing of § 87(2)(b) by pulling his arms behind his back. PO Noftsier did not recall whether § 87(2)(b) was ever down on the ground. PO Noftsier denied having observed any officer interact with § 87(2)(b) or § 87(2)(b). PO Noftsier did not smell the odor of marijuana at the scene. PO Noftsier remembered PO Mosher arriving at the scene after § 87(2)(b) was handcuffed. (encl. J1-J6).
- PO Fontanez did not recall the apprehension of § 87(2)(b) except for that he indicated that it occurred inside the apartment. PO Fontanez did not observe any

other civilian at the scene. PO Fontanez added that § 87(2)(b) walked out of the apartment in handcuffs. (encl. K1-K7).

- PO Burns corroborated that § 87(2)(b) was intoxicated and added that he was belligerent and verbally aggressive. PO Burns did not remember at which point during the incident he arrived and he did not recall observing any struggle. PO Burns did not remember observing any other civilian at the scene (encl. L1-L6).
- Sgt. Bowles indicated that he was not present for the apprehension of § 87(2)(b) and that he was called to the scene to verify his arrest. Sgt. Bowles did not remember observing any other civilian at the scene. Sgt. Bowles confirmed that PO Mosher arrived at the scene with him (encl. M1-M6).

Police Documents

- The Roll Call, for the time of the incident, indicates that PO Tanner and PO Bilger were assigned to Sector B1, Sgt. Bowles was assigned as the Patrol Supervisor, PO Mosher and PO Aguero were assigned to Conditions Auto, PO Burns and PO Fontanez were assigned to Sector A1, and PO Noftsier and PO Salazar were assigned to Sector A2 (encl. P1-P9).
- The Event information and chronology print-outs, related to this incident, indicate that a 911 caller, § 87(2)(b), § 87(2)(f) who he alleged was walking in and out of § 87(2)(b) with a knife. § 87(2)(b) added that § 87(2)(b) was smoking marijuana. The print-outs also indicate that PO Tanner and PO Bilger arrived at the scene at approximately 12:12 a.m., whereas PO Salazar and PO Noftsier arrived at approximately 12:13 a.m. The print-outs further indicate that Sgt. Bowles, PO Mosher, and PO Aguero arrived at the scene at approximately 12:19 a.m., and PO Burns and PO Fontanez arrived at approximately 12:20 a.m. PO Tanner and PO Bilger made a call announcing that they arrested an individual at 12:23 a.m. (encl. P10-P13).

Medical Records

- § 87(2)(a) PHL § 18(6), § 87(2)(b) [REDACTED]
- § 87(2)(a) PHL § 18(6), § 87(2)(b) [REDACTED]

Potential Issues

- § 87(2)(b) told the CCRB that he did not seek medical attention as a result of this incident. § 87(2)(b) indicated that she had sought medical attention, but she refused to authorize the CCRB to obtain a copy of her medical records generated following this incident.
- § 87(2)(b) and § 87(2)(b) are not fluent English speakers and thus did not understand most of the conversation between the officers and the civilians during the incident.
- On November 25, 2014, the undersigned investigator called § 87(2)(b) who stated that he did not witness the incident. § 87(2)(b) only recalled telling the 911 operator that § 87(2)(b) was smoking marijuana and playing loud music.
- Contact attempts to § 87(2)(b) and § 87(2)(b) via phone and mail, to schedule them for a photo array viewing, were unsuccessful.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) viewed a photo array, containing a picture of each of the officers who responded to this incident, and identified PO Tanner as the officer who pulled § 87(2)(b) out of the apartment and then brought him down to the floor. § 87(2)(b) and § 87(2)(b) indicated that the male officer who pulled § 87(2)(b) out of the apartment was one of the first two officers at the scene, his partner being a woman. § 87(2)(b) and § 87(2)(b) each provided a description of the first two officers at scene that closely match the physical descriptions of PO Tanner, a man, and PO Bilger, a woman. Although PO Tanner indicated otherwise, PO Bilger confirmed that she and PO Tanner were the first officers at the scene and to interact with § 87(2)(b) which is consistent with the Event chronology print-out. It should be noted that officer statements, not including that of PO Tanner, indicate that PO Mosher arrived at the scene toward the end of this incident, which is also consistent with the Event chronology print-out. § 87(2)(b) and § 87(2)(b) alleged that the officer who pulled § 87(2)(b) out of the apartment also used physical force against him and later pushed § 87(2)(b). § 87(2)(b) § 87(2)(g).

§ 87(2)(b) also identified PO Salazar, from the photo array, as the officer who may have pushed her down into the apartment and threatened to arrest her. § 87(2)(b) did not identify any other officer from the array as a potential subject officer for that allegation. At the time of her sworn statement, § 87(2)(b) provided a general description of the subject officer who pushed her. § 87(2)(b) described that officer as a white man in his thirties. PO Salazar is a Hispanic man with a lighter complexion who was § 87(2)(b) years old at the time of the incident. Additionally, PO Noftsier indicated that he and PO Salazar were the first officers to arrive at the scene in response to the call for assistance and that, upon their arrival, PO Bilger and PO Tanner were struggling with § 87(2)(b). PO Noftsier explained that he assisted with the apprehension of § 87(2)(b) thus making it likely that PO Salazar also played a role at the scene, and was not a passive bystander, in an effort to provide assistance to his colleagues engaged in a tense situation. § 87(2)(g)

Allegation Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

Allegation A – Abuse of Authority: PO Patrick Tanner entered § 87(2)(b) in Manhattan.

§ 87(2)(b) and § 87(2)(b)'s neighbor, § 87(2)(b) all corroborated that § 87(2)(b) was pulled out of his apartment by an officer, determined via investigation to be PO Tanner.

PO Tanner corroborated that an officer, whom he identified as PO Mosher, crossed the threshold of the apartment with his arm and that § 87(2)(b) then came out of his apartment. None of the additional interviewed officers corroborated the entry. PO Bilger and PO Noftsier denied having smelled the odor of marijuana at the scene. PO Bilger explained that the marijuana was recovered from § 87(2)(b) after he was handcuffed and that she did not know § 87(2)(b) was in possession of any prior to his arrest. PO Bilger also indicated that PO Mosher, who was assigned as Sgt. Bowles' operator, was not present at the time of this alleged entry.

None of the interviewed parties made any indication that the officers made any attempt to retrieve narcotics from the apartment. Instead, all statements indicate that the officers were primarily concerned with apprehending § 87(2)(b).

The Event summary indicates that § 87(2)(b), § 87(2)(f)

§ 87(2)(b) The summary further indicates that PO Tanner and PO Bilger were the first officers at the scene, and that Sgt. Bowles and PO Mosher arrived second to last, eight minutes after them.

It has been well established that, absent exigent circumstances, officers may not cross the threshold of a home, which has been firmly drawn as its entrance, or in this case the doorway of § 87(2)(b)'s apartment, without a warrant. See People v. Reese, 5 Misc. 3d 1030(A) (Dist. Ct., Suffolk Co. 2004) and Payton v. New York, 445 U.S. 573 (1980). (encl. A1-A28).

According to People v. Coles, 105 A.D.3d 1360 (4th Dept. 2013), some factors to consider in determining whether exigent circumstances exist are the nature and degree of urgency involved and the amount of time needed to obtain a warrant, a reasonable belief that contraband is about to be removed, the possibility of danger to police officers guarding the site of the contraband while a search warrant is sought, and information indicating that the possessors of the contraband are aware that the police are on their trail (encl. A29-A31).

§ 87(2)(g)

It is un

§ 87(2)(b) alleged that PO Tanner first pulled him out of the apartment and then swept

§ 87(2)(b) stated that PO Tanner first pulled § 87(2)(b) out, handcuffed him, and then

§ 87(2)(b) and § 87(2)(b) corroborated that § 87(2)(b) was first pulled out and then

PO Tanner and PO Bilger both denied remembering how § 87(2)(b) came to be down on

PO Noftsier explained that he arrived in the midst of the struggle and did not remember

Each of the additional officers interviewed either denied having been present when § 87(2)

According to NYPD Patrol Guide Procedure 203-11 (encl. A32-A33), only that amount of

§ 87(2)(g)

Allegation B be closed as **unsubstantiated**.

Allegation C – Force: PO Patrick Tanner used physical force against § 87(2)(b)

Allegation D – Force: PO David Salazar used physical force against § 87(2)(b)

Allegation E – Abuse of Authority: PO David Salazar threatened to arrest § 87(2)(b)

§ 87(2)(b)

Allegation F – Abuse of Authority: An officer threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) was screaming and pleading with the officers throughout the incident. It is further undisputed that § 87(2)(b) and § 87(2)(b) were standing in the doorway and were directing numerous statements at the officers, who were struggling with § 87(2)(b) while being just a few feet from them.

§ 87(2)(b) explained that officers ordered § 87(2)(b) to get out of the way, at which point an unidentified officer pushed her, causing her to fall down. § 87(2)(b) added that an unidentified officer stated to § 87(2)(b) as she was approaching him, “Move out of the way or we’re going to arrest you.” § 87(2)(b) did not mention having observed § 87(2)(b) be pushed.

§ 87(2)(b) alleged that PO Salazar pushed her down twice inside the apartment, and that PO Tanner pushed § 87(2)(b) in a similar manner. § 87(2)(b) added that PO Salazar warned her that she could be arrested as he pushed her. § 87(2)(b) reported having sustained pain to her arms and neck as a result of this incident.

§ 87(2)(b) alleged that PO Tanner pushed her on the chest with two hands, causing her to fall down onto objects inside of the apartment. § 87(2)(b) reported having sustained bruising to her waist, buttocks, and head as a result of this incident. § 87(2)(b) added that PO Tanner also pushed § 87(2)(b) down. § 87(2)(b) denied that she and § 87(2)(b) attempted to approach § 87(2)(b).

None of the interviewed officers corroborated the use of force or any threat of arrest against § 87(2)(b) or § 87(2)(b).

According to New York State Penal Law § 195.05, “a person is guilty of obstructing governmental administration in the second degree when he [or she] intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act” (encl. A34-A41).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) Thus, it is recommended that **Allegations C, D, E, and F** be closed as **exonerated**.

§ 87(4-b), § 87(2)(g)

[REDACTED]

Team: 3

Investigator:	_____	<u>Keyne Jean Villert</u>	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date